

The Orissa Weights and Measures (Enforcement) Act, 1958

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State of Odisha - Act

The Orissa Weights and Measures (Enforcement) Act, 1958

ODISHA

India

The Orissa Weights and Measures (Enforcement) Act, 1958

Act 20 of 1958

Published on 1 May 1960

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The Orissa Weights and Measures (Enforcement) Act, 1958

Act

20 of 1958

Published in the Orissa Gazette Extraordinary No. 386/20.4.1958.

For Statement of Objects and Reasons, see Orissa Gazette Extraordinary ordinary No.109/20.3.1958.

The Act came into force with effect from 1st May 1960 vide Notification No.15604-M.II-M-22/60-Dated/18.4.1960.

An Act to provide for the enforcement of standard weights and measures and for matters connected therewith.

Preamble - Whereas it is expedient to enforce the standard weights and measures based on metric system in the State of Orissa and to provide for other matters connected therewith;

It is hereby enacted by the Legislature of the State of Orissa in the Ninth Year of the Republic of India as follows :

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Orissa Weights and Measures (Enforcement) Act, 1958.

(2)

It extends to the whole of the State of Orissa.

(3)

It shall come into force on such date as the State Government may, by notification in the Gazette appoint, and different dates may be appointed for different provisions of this Act or for different areas or for different classes of undertakings or for different classes of goods.

2.

Definitions.

- In this Act, unless the context otherwise requires -

(a)

"Commercial weight or measure" means a weight or measure purporting to be a standard weight or measure used in any transactions for trade or commerce;

(b)

"Controller", "Additional Controller", "Joint Controller", "Deputy Controller" and "Assistant Controller" means the Controller, Additional Controller, Joint Controller, Deputy Controller and Assistant Controller, of Weights and Measures appointed under Section 15;

(c)

"Inspector" means an Inspector of Senior Inspector of Weights and Measures appointed under Section 15;

(d)

"Measuring instrument" means any measuring instrument other than a weighing instrument and includes any instrument for measuring tenth, area, volume or capacity;

(e)

"mint" means the mint of the Central Government either in Bombay or in Calcutta,

(f)

"Prescribed" means prescribed by rules made under this Act;

(g)

"Standard weight or measure" means any unit of mass or measure referred to in Sub-section (1) of Section 13 of the Standards of Weights and Measures Act, 1956 (89 of 1956) and includes any other weight or measure permitted to be used by the Central Government in pursuance of Sub-section (1) of Section 14 of the said Act;

(h)

"Reference standards" mean the sets of standard weights and measures supplied to the State Government by the Central Government in pursuance of Sub-section (2) of Section 15 of the Standards of Weights and Measures Act, 1956 (89 of 1956);

(i)

"Secondary standards" mean weights and measures prepared under Sub-section (1) of Section 4;

(j)

"Stamping" means marking in such manner as to be so far as practicable, indelible and includes casting, engraving, etching and branding;

(k)

"Verification" with its grammatical variations used with reference to a weight or measure or weighing or measuring instrument, includes the process of comparing, checking or testing such weight or measure or weighing or measuring instrument and also includes re-verification;

(l)

"Weighing instrument" means any instrument for weighing and includes scales with the weights belonging thereto, scale-beams, balances, spring balances, steel yards and other weighing machines;

(m)

"Working standards" mean weights and measures prepared under Sub-section (1) of Section 3;

(n)

"rules" means rules made under Section 44.

Chapter II

Standard weights and measures

3.

Working standards.

(1)

For the purpose of verifying the correctness of commercial weights and measures and weighing and measuring instruments used in transactions for trade or commerce, the State Government may cause to be prepared as many sets of authenticated standard weights and measures as they may deem necessary to be called the working standards, and special sets of working standards in relation to bullion and precious stones may also be prepared.

(2)

The working standards shall be made of such material and according to such designs and specifications and shall be prepared by such agency and shall be stamped and authenticated by such person or authority and in such manner as may be prescribed.

(3)

The working standards shall be kept at such places, in such custody and in such manner as may be prescribed.

(4)

A working standard shall be verified with the secondary standard and marked by such persons, at such places, at such intervals and in such manner as may be prescribed :

Provided that a special working standard in relation to bullion and precious stones shall be verified with the reference standard.

(5)

A working standard which is not so verified and marked within the prescribed period shall not be deemed legal or be used for the purposes of this Act.

(6)

A working standard which has become defective shall not be deemed legal or be used for the purposes of this Act until it has been verified and marked in the prescribed manner.

4.

Secondary standards.

(1)

For the purpose of verifying the correctness of the working standards, the State Government may cause to be prepared at the Mint as many sets of authenticated standard weights and measures as they may deem necessary to be called the secondary standards.

(2)

The secondary standards shall be made of such material and according to such design and specifications as may be prescribed and shall be stamped and authenticated by such person or authority as the Central Government may direct.

(3)

The secondary standards shall be kept at such places, in such custody and in such manner as may be prescribed.

(4)

A secondary standard shall be verified with the reference standard at least once in every period of five years and shall be marked with the date of verification in the prescribed manner by such person or authority as the State Government may direct.

(5)

A secondary standard which is not so verified and marked within the aforesaid period shall not be deemed legal and shall not be used for the purposes of this Act.

5.

Reference standards.

- The reference standards shall be kept at such places, in such custody and in such manner as the State Government may direct.

6.

Standard weighing and measuring instruments.

(1)

For the purposes of verifying the correctness of commercial weights and measures and of weighing and measuring instruments used in transactions for trade or commerce the State Government may cause to be prepared as many sets of weighing and measuring instruments as they may deem necessary.

(2)

Such instruments shall be of such kind, kept in such number and shall be verified and stamped in such manner as may be prescribed.

(3)

Such instruments shall be kept at all places where secondary standard or working standards are kept.

7.

Prohibition of use of weights and measures other than standard weights and measures.

(1)

Notwithstanding anything contained in any other law or any custom, usage or practice, no unit of mass or measure, other than the standard weights or measure shall be used in any transactions for trade or be sold or delivery in any area or in relation to any class of goods or undertakings in respect of which this Act has been brought into force.

(2)

Any custom, usage, practice or method of whatever nature which permits in any trade or trader, seller or buyer to demand, to receive or cause to be demanded or received any quantity of article in excess of or less than the quantity of the said article has been made, shall be void.

(3)

Any transaction, dealing or contract made or had, after the expiry of three months from the commencement of this Act shall, in so far as it contravenes the provisions of Sub-section (1); be void.

8.

Power to prescribe the use of weights only or measures only in certain cases.

(1)

Notwithstanding anything contained in this Act, the State

Government may by notification in the Gazette, direct that in any specified trade or class of trade no transaction, dealing or contract shall be made or had, except by weight only, or except by measure only.

(2)

A notification issued under this Section shall take effect in such area, with effect such date and subject to such conditions, if any, as may be specified therein.

Chapter III

Verification and stamping of weights and measures

9.

Marking of denominations on commercial weights and measures.

- Every weight or measure manufactured for use as a commercial weight or measures shall bear the description of the weight or measure which it purports to be marked legible on it in such manner as may be prescribed.

10.

Prohibitions of sale of unstamped commercial weights and measures.

- No commercial weight or measure or weighing or measuring instrument shall be sold or delivered unless it has been verified or re-verified in accordance with the rules and stamped in the prescribed manner by an Inspector with stamp of verification.

11.

Prohibition of use of unstamped commercial weights or measures.

- No weight or measure or weighing or measuring instruments shall be used in transactions in trade or commerce unless it has been verified or reverified in accordance with the rules and stamped in the prescribed manner by an Inspector, with a stamp of verification.

12.

Power of State Government to exempt.

- Where the size of a commercial weight or measure renders it impracticable to have any denomination marked on it under the provisions of Section 9 or to be stamped under the provisions of Section 1D or Section 11, the State Government may, by notification in the Gazette, exempt such weights or measures from being so stamped.

13.

Prohibition of manufacture etc. of weights and measures without licence.

- No person in course of trade or business shall manufacture, repair, or sell any commercial weight or measure or any weighing or measuring instrument unless he has obtained in the prescribed manner a licence in this behalf from the State Government or any officer authorised by such Government.

14.

Marking of weights or measures on sealed containers.

- No person shall sell, offer for sale, expose for sale or have in his possession for sale, any article contained in a sealed package or container unless such package or container bears thereon, or on a label security attached thereto, a description of the net weight or measure of the article contained therein :

Provided that the provisions of this section shall not apply to any article which is not ordinarily sold by weight or measure.

15.

Appointment of Controller and other authorities and their powers and functions.

(1)

The State Government may appoint a Controller, and Additional Controller and a Joint Controller of Weights and Measures for the State and as many Deputy Controllers, Assistant Controllers, Inspectors and Senior Inspectors of Weights and Measures as may be necessary for the purposes of this Act; and the authorities so appointed shall exercise the powers and discharge the duties conferred or imposed on them by or under this Act.

(2)

The local jurisdiction of the Inspectors shall be such as the State Government may, by general or special order, specify in that behalf.

(3)

Subject to the provisions of this Act the Additional Controller the Joint Controller and all Deputy Controllers, Assistant Controllers and Inspectors shall be subject to the general superintendence and control of the Controller.

(4)

The Controller, the Additional Controller the Joint Controller, Deputy Controllers and Assistant Controllers may, in addition to the powers and duties conferred or imposed on them, exercise any power and discharge any duty conferred or imposed on the Inspectors.

16.

Inspectors to enter into recognizance.

- Every inspector shall forthwith on his appointment enter into a recognizance with the State Government in such sum as may be prescribed for the due performance of the duties of his office, for the due payment at the time and in the manner required by the State Government of all moneys received by him under this Act and for the safety of the secondary and working standards, if any, and of the stamps and appliances for verification committed to his charge and for their due surrender immediately on his ceasing to hold office.

17.

Verification and stamping by Inspectors.

(1)

Every Inspector shall, for the purpose of verification of weights and measures and weighing and measuring instruments, attend at such places and time within his jurisdiction as may be appointed in this behalf by the controller.

(2)

The Inspector shall verify every weight or measure or weighing or measuring instrument which is brought to him for the purpose of verification and if he finds such weight or measure or weighing or measuring instrument correct and in conformity with the Standards of Weights and Measures Act, 1956 (89 of 1956) and the rules made thereunder, he shall stamp the same with a stamp of verification in the prescribed manner.

18.

Power to inspect, etc.

(1)

An Inspector may, within the area under his jurisdiction, inspect at all reasonable times, the weights, measures and weighing and measuring instruments which are used in transactions for trade or commerce or are in the possession of any person or are on any premises for such use and may verify every such weight or measure or weighing or measuring instrument prescribed for the purpose.

(2)

For the purpose of verifying the correctness of any weight or measure used in any transaction, an Inspector may also verify the weight or measure of any article sold or delivered in the course of the transaction.

(3)

An Inspector may, at all reasonable times, require any trade or any employee or agent of a trader to produce before him for inspection all weights, measures, weighing and measuring instruments which are used by him or are in his possession or are kept on any premises used for trade and all documents and records relating thereto and such trader, employee or agent shall comply with such requirements.

(4)

An Inspector may seize and detain any weight or measure or weighing or measuring instrument regarding which an offence under this Act appears to have been committed or which appears to have been or which might be used in the commission of such an offence, and may also seize and detain any articles sold or delivered or caused to be sold or delivered by means of such weight or measure or weighing or measuring instrument together with any documents or records relating thereto.

(5)

Where an Inspector has reasons to believe that a sealed package or container does not actually contain the net weight or measure of the article which it purports to contain, the Inspector may break open the sealed package or container and verify its contents and if, on such verification, the net weight or measure of the article is found to be correct, the Inspector shall re-seal the package or container where it is possible so to do without injury to the contents thereof and attach a certificate thereto stating the correct weight or measure of the article, but if, on the other hand, the net weight or measure of article is found to be incorrect, the Inspector may seize and detain the package or container and the article contained therein.

(6)

For the purpose of such inspection, an Inspector may at all reasonable times, enter into any place where weights, measures or weighing or measuring instruments are used or kept for use in transactions for trade or commerce and inspect such weights and measures and weighing and measuring instruments.

19.

Powers of Inspector to adjust weights or measures.

- Where it appears to the State Government desirable that an Inspector should be allowed in any area to adjust the weights or measures or weighing or measuring instruments, they may, if they think fit, authorise such Inspector to adjust weights and measures or such instrument's accordingly.

20.

Controller, Inspector, etc., to be public servants.

- The Controller, the Additional Controller, the Joint Controller and every Deputy Controller, Assistant Controller and Inspector shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code (45 of 1860).

21.

Manufacturers, etc., to maintain records and documents.

(1)

Every manufacturer, repairer or dealer in weights and measures or weighing or measuring instruments, and every person using them in transactions for trade or commerce shall maintain such records and accounts as may be prescribed and if required so to do by an Inspector, shall produce such records and accounts before him.

(2)

Notwithstanding anything contained in Sub-section (1), if the State Government are of opinion that having regard to the nature of business carried on by any such manufacturer, repairer, or dealer, it is necessary so to do, they may, by order, exempt such person or class of persons from the operation of that Sub-section.

22.

Appeals.

(1)

Any person aggrieved by any decision of an Inspector made under this Act may, within sixty days from the date of the decision, prefer an appeal to the Collector or to any officer appointed under this Act who is specially authorised in that behalf by the State Government ;

Provided that when such decision is made by any officer, other than an Inspector, the exercise of any power of duty conferred or imposed on an Inspector, the appeal shall lie to such authority as may be prescribed.

(2)

On receipt of an appeal under Sub-section (1) the appellate officer shall, after giving the persons concerned a reasonable opportunity of being heard, decide the appeal and the decision of the appellate authority shall be final.

23.

Levy of fees.

- The State Government may charge such fees-

(a)

for the grant of licences under Section 13, for manufacture repair or sale of commercial weights and measures and weighing measuring instruments; and

(b)

for the verification, marking, stamping and adjustment of commercial weights and measures and weighing and measuring instruments, as may be prescribed.

24.

Validity of weights and measures duly stamped.

- A weight or measure or weighing or measuring instrument, duly stamped by an Inspector under this Act, shall be a legal weight or measure or weighing or measuring instrument in all places in which this Act has come into force unless it is found to be false or defective and shall not be liable to be re-stamped by reason merely of the fact that it is used in any place other than that in which it was originally stamped.

Chapter IV

Penalties

25.

Penalty for sale or delivery by weight or measure other than standard weight or measure.

- Whoever, after the expiry of three months from the commencement of this Section, sells or causes to be sold or delivers or causes to be delivered in the course of any transaction for trade or commerce any article by any denomination of weight or measure other than one of the standard weights or measures, shall be punishable, for a first offence, with fine which may extend to two hundred rupees, and for a second or subsequent offence, with imprisonment for a period which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

26.

Penalty for sale of unstamped commercial weights and measures.

- Whoever sells or delivers any commercial weight or measure or any weighing or measuring instrument which has not been verified or re-verified or stamped in accordance with the provisions of this Act and the rules made thereunder shall be punishable with fine which may extend to five hundred rupees.

27.

Penalty for use of unstamped commercial weights and measures.

- Whoever uses in any transaction for trade or commerce, or has in his possession for such use, any commercial weight or measure or any weighing or measuring instrument which has not been verified or re-verified or stamped in accordance with the provisions of this Act and the rules made thereunder shall be punishable for a first offence, with fine which may extend to two hundred rupees, and for a second or subsequent offence, with imprisonment for a period which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

Explanation I - When any such weight or measure or weighing or measuring instrument is found in the possession of any trader or any employee or agent of such trader, such trader, employee or agent shall be presumed, until the contrary is proved, to have had it in his possession for use in transactions for trade or commerce.

Explanation II - Where any weight or measure or weighing or measuring instrument is used or possessed in contravention of this Section by any employee or agent of a trader on behalf of such a trader, such trader shall, unless

he proves that the offence under this Section was committed by his employee or agent without his knowledge or consent, be also deemed to be guilty of the offence.

28.

Penalty for manufacture of weights, etc., without licence.

- If any person manufactures, repairs, or sells any commercial weight or measure or weighing or measuring instrument, without obtaining a licence as required by Section 13, he shall be punishable with imprisonment for a period which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

29.

Penalty for use of weight or measure in contravention of Section 8.

- Whoever contravenes any of the provisions of a notification issued under Section 8 shall be punishable with fine which may extend to five hundred rupees.

30.

Penalty for failure to mark weight or measure on sealed containers.

- Whoever contravenes the provisions of Section 14 shall be punishable with fine which may extend to three hundred rupees.

31.

Penalty for fraudulent use of weights or measures, etc.

- Whoever fraudulently uses any standard weight or measure or weighing or measuring instrument which he knows to be false shall be punishable with imprisonment for a period which may extend to one month or with fine which may extend to five hundred rupees or with both.

32.

Penalty for being in possession of false weight or measure, etc.

- Whoever is in possession of any commercial weight or measure or weighing or measuring instrument which he knows to be false, intending that the same may be fraudulently used, shall be punishable with imprisonment for a period which may extend to fifteen days or with fine, which may extend to two hundred rupees or with both.

33.

Penalty for making or selling false weight or measure, etc.

- Whoever makes, sells or disposes of or causes to be made, sold or disposed of any standard weight or measure or weighing or measuring instrument which he knows to be false, in order that the same may be used as true, or knowing that the same is likely to be used as true, shall be punishable with imprisonment for a period which may extend to one month, or with fine which may extend to five hundred rupees or with both.

34.

Penalty for giving short weight or measure.

- Whoever in selling any article by weight or measure, delivers or causes to be delivered to the purchaser less than what is purported to be sold shall, if the deficiency exceeds the prescribed limit of error, be punishable with fine which may extend to three hundred rupees.

35.

Penalty for forging, etc. of weights or measures .

(1)

Whoever forges or counterfeits any stamp used under this Act for the stamping of any standard weight or measure or weighing or measuring instrument or possesses any such counterfeit stamp, or removes a stamp from any standard weight or measure or weighing or measuring instrument and inserts the same into another weight or measure or weighing or measuring instrument or wilfully increases or diminishes a weight or measure so stamped shall be punishable with imprisonment for a period which may extend to one month, or with fine which may extend to five hundred rupees or with both.

(2)

Whoever knowingly uses, sells, disposes of or exposes for sale any weight or measure or weighing or measuring instrument with such forged or counterfeit stamp thereon, or a weight or a measure so increased or diminished shall be punishable with imprisonment for a period which may extend to one month or with fine which may extend to five hundred rupees or with both.

36.

Penalty for neglect or refusal to produce weight or measure etc. for inspection.

- Whoever-

(a)

refuses or neglects to produce for inspection under Section 17, any weight or measure or weighing or measuring instrument or any document or record relating thereto in his possession or on his premises; or

(b)

refuses to permit an Inspector to inspect and verify any such weight, measure, instrument, document or record; or

(c)

obstructs the entry of an Inspector under Section 17; or

(d)

otherwise obstructs or hinders an Inspector in the performance of his duties under this Act, shall be punishable with fine which may extend to five hundred rupees.

37.

Penalty for breach of duty of Inspector.

- If an Inspector knowingly stamps a weight or measure or weighing or measuring instruments in contravention of the provisions of this Act or of the rules made thereunder, he shall be punishable with imprisonment for a period which may extend to three months, or with fine which may extend to seven hundred and fifty rupees or with both.

Chapter V

Miscellaneous

38.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against any officer or any other person appointed under this Act in respect of anything which is in good faith done or intended to be done in pursuance of this Act or rules made thereunder.

39.

Cognizance of offences, etc.

(1)

No Court shall take cognizance of any offence punishable under this Act except upon complaint in writing made by the Controller or any officer authorised in this behalf by the Controller by general or special order.

(2)

No Court inferior to that of a Magistrate of First Class shall try any offence punishable under this Act.

40.

Stamped weights, etc., to be presumed to be correct.

- A weight or measure or weighing or measuring instrument duly stamped under the provisions of this Act and the rules made thereunder shall be presumed to be correct until its inaccuracy is proved, on its being produced in any Court by any Inspector having charge thereof or by any person acting under the general or special authority of the Controller.

41.

Offences by companies.

(1)

If the person committing an offence under this Act is a company, every person who at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company as well as the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this Sub-section shall fender any such person liable to punishment if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in Sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of any director, manager, secretary or other officer, such officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation - For the purposes of this Section -

(a)
"company" means any body corporate and includes a firm or other association of individuals;

(b)
"director" in relation to a firm, means a partner in the firm.

42.

Delegation of powers.

- The State Government may, by notification in the Gazette, direct that any power exercisable by them under this Act or rules made thereunder shall, in relation to such matters and subject to such conditions, as may be specified in the direction be exercisable also by such officer or authority subordinate to the State Government as may be specified in the notification.

43.

Limits of error to be tolerated in weights and measures.

- Subject to any rules that may be made under the Standards of Weights and Measures Act, 1956 (89 of 1956) in this behalf, the State Government may prescribe the limits of error which may be tolerated-

(a)
in secondary standards referred to in Section 4;
(b)
in working standards referred to in Section 3;
(c)
in commercial weights and measures or in selling articles by weight or measure generally or as regards any trade or class of trades; and

(d)
weighing and measuring instruments.

44.

Power to make rules.

(1)
The State Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2)
In particular and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:

(a)
the material of which and the designs and specifications according to which working standards may be made, the agency by which such standards may be prepared, the person by whom or the authority by which and the manner in which such standards may be stamped and authenticated the places at which and the custody and manner in which such standards may be kept;

(b)
the procedure for the verification or re-verification and marking of working standards, the persons by whom, the places at which and the intervals at which they may be marked;

(c)
the material of which and the designs and specifications according to which secondary standards may be made, the places at which and the custody and manner in which such standards may be kept;

(d)
the procedure for the verification or re-verification and marking of secondary standards and the manner in which they may be marked;

(e)
the number of weighing and measuring instruments to be kept, the manner in which they may be verified and stamped and necessary particulars regarding the same;

(f)
the manner in which commercial weights and measures may be marked by manufacturers;

(g)

the form and manner in which and the conditions subject to which licences may be granted to persons for manufacture, repair or sale of commercial weights and measures and weighing and measuring instruments;

(h)

the qualification, functions and duties generally of Inspectors under this Act;

(i)

verification and stamping of weights and measures and weighing and measuring instruments and the period within which they are to be re-verified;

(j)

inspection of weights and measures and weighing and measuring used in transactions for trade or commerce;

(k)

the seizure, detention and destruction of weights and measures which are not authorised by this Act;

(l)

the books, accounts and records relating to weights and measures and weighing and measuring instruments to be maintained and the manner in which they may be maintained or produced;

(m)

the limits of error which may be tolerated in secondary or working standards;

(n)

the limits of error which may be tolerate din weights and measures and weighing and measuring instruments used or intended to be used in transaction for trade or commerce;

(o)

the limits of error which may be tolerated in selling articles by weights and measures generally or as regards any trade or class of trades;

(p)

the form and manner in which appeals may be preferred against decisions of Inspectors and the procedure for hearing appeals;

(q)

the fees which may be charged for the grant of licences under Section 13 and for verification, re-verification, adjustment and stamping of weights and measures and weighing and measuring instruments and the collection and levy of the same.

(3)

In making any rule under this Section the State Government may provide that a breach therefor shall be punishable with fine which may extend to one hundred rupees.

(4)

The power to make rules under this Section shall be subject to the condition of previous publication in the Gazette.

(5)

All rules made under this Section shall, as soon as may be after they are made, be laid before the State Legislature.

45.

Repeal.

(1)

On the coming into force of this Act by a notification under Sub-section (3) of Section 1 the enactments mentioned in the Schedule below shall stand repealed to the extent specified in the fourth column thereof;

Schedule

Year

Number

Enactments repealed

Extent of repeal

(1)

(2)

(3)

(4)

1943

7

The Orissa Weights and Measures Act

The whole

1950

22

The Orissa Local Government Act

Sub-clause (c) of Cl. (11) of Section 292.

1950

23

The Orissa Municipal Act

Clause (20) of Section 388.

1920

14

The Madras Local Boards Act

Sub-clause (d) of Clause (10) of Section 202.

(2)

On the coming into force of the Orissa Weights and Measures (Enforcement) Amendment Act, 1976, the Central Provinces Weights and Measures of Capacity Act, 1928 (Central Provinces Act 2 of 1928) shall, in its application to the State of Orissa, stand repealed.

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Translation